

GZ: 2023-0.594.826 dated December 18, 2023 (Case number: DSB-D124.0809/23)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected. The name of the first respondent, an international organization with its own legal personality, could not be pseudonymized, as the headquarters agreement concluded by Austria with the OSCE is part of the legal basis for the decision. The confidentiality right (§ 1 DSG) and the confidentiality interest of the first respondent, a legal entity, are countered by the statutory mandate according to § 23 para. 2 DSG, whereby this is a decision of fundamental importance for the public, as some legal questions have been addressed here for the first time. The decision was therefore included in the decision documentation of the Data Protection Authority, despite the impossibility of complete pseudonymization, due to the predominance of the general interest in publication.]

DECISION SPRUCH

The Data Protection Authority decides on the data protection complaint of Ambassador Dr. Theodor D*** (first complainant) and Charlotte D***, LL.M. (second complainant), both represented by B*** Rechtsanwältin OG, dated April 18, 2023, against the OSCE – Organization for Security and Cooperation in Europe (first respondent), Ursula G*** (second respondent), Irmgard H*** (third respondent), Otto J*** (fourth respondent), and Paul K*** (fifth respondent) regarding violations of 1) the right to confidentiality, 2) the right to information, and 3) the right to deletion as follows:

1. The complaint is dismissed regarding the violations of the right to confidentiality, the right to information, and the right to deletion claimed by the complainants against the second respondent, the third respondent, the fourth respondent, and the fifth respondent.
2. The complaint is rejected regarding the violations of the right to confidentiality, the right to information, and the right to deletion claimed by the complainants against the first respondent.

Legal bases: Art. 15, Art. 17, Art. 51 para. 1, Art. 57 para. 1 lit. f, and Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; §§ 1, 18 para. 1, and 24 para. 1 and para. 5 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended; Agreement between the Republic of Austria and the Organization for Security and Cooperation in Europe (OSCE) on the headquarters of the Organization for Security and Cooperation in Europe, Federal Law Gazette III No. 84/2018 as amended.

REASONING

A. Submissions of the parties and procedural history

1. In the initiating submission dated April 18, 2023, the legally represented complainants claimed to have been violated in their right to information, right to deletion, and right to confidentiality by the above-mentioned respondents.

The complainants explained that the first complainant is the ambassador sent by the government of ****, who has been the project coordinator for W*** for the first respondent since May 1, 2022, for a duration of 12 months. The first complainant has been married to the second complainant since May 13, 2022.

The first respondent is an international organization based in Vienna and enjoys immunity regarding Austrian jurisdiction, as do its employees. However, the wording of the headquarters agreement does not imply that there is also an exemption from administrative procedures, such as those before the Data Protection Authority. Furthermore, the immunity of employees is always limited to the scope of their official functions.

The complaint is directed against the first respondent as an international organization, as well as against the second respondent, who performs the function of **** of the first respondent, against the third respondent, who is the director of the **** office of the first respondent, against the fourth respondent, who is the *** inspector of the first respondent, and against the fifth respondent, who is also a *** inspector of the first respondent.

On April 20, 2022, an internal investigation against the first complainant was initiated by the first respondent, based on a complaint submitted by a former employee on April 18, 2022, in which she alleged sexual harassment and discrimination. The first complainant then submitted a comprehensive statement, indicating that the allegations were not accurate.

In the course of the complaint submitted by the employee to the first respondent, WhatsApp and Telegram communications, particularly between her and the first complainant as well as between him and the second complainant, were disclosed. However, the communication visible therein does not show any harassing or discriminatory behavior.

The first respondent takes such complaints very seriously and informed the first complainant on May 11, 2022, that investigations would be initiated. These investigations are based on the regulation applied to the employees of the first respondent, namely Staff Instruction No. 21/Rev.1 and its Annex 2, Paragraph 2.9.

(Formal Procedures for Addressing Allegations of Violation of the Professional Working Environment) based, which would also include investigations against employees.

The second respondent decided to refer the matter to the Office of **** of the first respondent for further investigations against the first complainant. In July 2022, an interview with the first complainant was conducted by the fourth and fifth respondents, during which the work mobile phone was also seized. However, the first complainant did not consent to the seizure of his work mobile phone - specifically a Samsung smartphone S/N: *U*T*87*; OSCE Asset Tag Number *4*9***3*2 - nor to the evaluation of the files located on it or accessible via the work mobile phone (digital forensics and analysis). The first respondent utilized the services of the company M*** Forensics for the evaluation of the mobile phone's files. As a result, there was a transmission to an EU country, of which the first complainant was not informed. The evaluation of the work mobile phone was initiated by the third respondent. The second and third respondents, as well as the fourth and fifth respondents, were also involved in the investigation process. The latter two respondents conducted analyses of the collected data over a period of four months and arrived at incorrect conclusions.

In the course of the forensic examination and analysis of the first complainant's work mobile phone, which began on August 19, 2022, a multitude of contents (referred to as digital artifacts) were extracted and analyzed. Approximately [Note: Numbers truncated for pseudonymization reasons] 3.8** contacts, 1,851.4** messages, 1.6** V***-mails, and 1,246.6** files (apparently photos) were extracted. Even deleted contents were restored. Although the claims of the employee were not confirmed, the first complainant was nonetheless informed in November 2022 that the extracted or deleted and restored photos contained both nudity and pornographic content, and for this reason, proceedings would be initiated against the first complainant for violation of the OSCE Code of Conduct and the Financial and Administrative Instruction 12 "Policy on Use of OSCE Computing Resources." The extracted data largely pertained to the private and family life of the first complainant. Some of these sent or received messages contained photos that concerned the complainant's intimate sphere. The health data of the first complainant's parents were also affected. The work mobile phone was further divided into two profiles ("private profile" and "work profile"). Due to the legal violations revealed by the analysis of his private data and the fact that the resulting incorrect analysis results were presumably used as a basis for employment-related decisions, a request was submitted to the first respondent by his legal representatives on November 18, 2022, in which they were asked to delete the unlawfully obtained data and to inform what

1. Persons who have transmitted or made accessible personal data attributable to the complainants. The first respondent informed on November 23, 2022, that due to its immunity, it would not comply with the two requests. The first complainant was suspended in June 2022, and his appointment ended on April 30, 2023.

As attachments are

- the notification of the initiation of proceedings (Attachment .A),
- the Staff Instruction No. 21/Rev.1 (Attachment .B),
- an excerpt from the forensic report dated November 7, 2022 (Attachment .C),
- the OSCE Code of Conduct (Attachment .D),
- the email from the complainants' representative to the first respondent dated November 18, 2022

(Attachment ./E), and

- the response from the first respondent dated November 23, 2022 (Attachment ./F) attached.

****2.**** In the supplementary submission dated May 16, 2023, the represented complainants stated that, on the one hand, the attachments had now also been transmitted in German, and on the other hand, they reiterated that their personal data had been contained on the mobile phone, which, however, predominantly belonged to their private sphere and also involved sensitive data. Consent had not been given by the complainants. The request for deletion had not been granted by the first respondent; rather, it had explicitly refused. The question regarding the recipients of the transmitted data, to whom the complainants' data had been forwarded, remained unanswered. The first respondent as an international organization and the four named natural persons, all of whom would be in an employment or labor law relationship with it, are the respondents. The complainants would like to emphasize again that not only professional data had been evaluated, but also private content, which had also been marked as such. There is no legal basis for this.

As attachments in German are

- the notification of the initiation of proceedings (Attachment ./A),
- the Staff Instruction No. 21/Rev.1 (Attachment ./B),
- an excerpt from the forensic report dated November 7, 2022 (Attachment ./C),
- the OSCE Code of Conduct (Attachment ./D),
- the email from the complainants' representative to the first respondent dated November 18, 2022 (Attachment ./E), and
- the response from the first respondent dated November 23, 2022 (Attachment ./F) attached.

****3.**** The Data Protection Authority, by means of a request for a statement dated May 22, 2023, served the complaint dated April 18, 2023, improved on May 16, 2023, in accordance with § 11 para. 2 of the Delivery Act to the designated respondents via the Federal Ministry for European and International Affairs (BMEIA).

****4.**** The Data Protection Authority transmitted to the complainants, as part of the hearing on July 27, 2023, a copy of the delivery confirmation received by the BMEIA dated June 22, 2023, and further informed that a statement from the respondents had not been received to date.

****5.**** The complainants represented by counsel announced by phone on August 3, 2023, that they would not submit a statement in the context of the hearing on July 27, 2023.

****6.**** With the decision dated August 29, 2023, the Data Protection Authority submitted a request for administrative assistance to the Austrian Permanent Representation to the OSCE, asking whether there are internal data protection regulations at the OSCE, and if so, to transmit them. Furthermore, on August 29, 2023, the Data Protection Authority requested the complainants to indicate whether there are internal regulations at the first respondent that are similar to the GDPR.

****7.**** In the statement dated September 11, 2023, the complainants represented by counsel requested an extension of the deadline until September 26, 2023. Within the open deadline, the complainants submitted a filing on September 25, 2023, stating that the second and third respondents as well as the fourth and fifth respondents would be in an employment relationship with the first respondent.

In the year 2021 - after the entry of the first complainant into the service of the first respondent - several regulations were introduced. These relate to:

- Information on the objectives of information security
- the OSCE directive on the permissible use of OSCE computer resources (FA 12)
- the OSCE directive on information security (FA 13)

The private use of mobile devices is regulated in the OSCE directive on the permissible use of OSCE computer resources in Annex 3, whereby mobile communication service devices are primarily provided for business purposes, but private use is also permitted. Under point 6.4, the protection of data is regulated, which stipulates that access to user data and information, including data captured by monitoring systems, may only be granted to certain employees if there is a valid reason for it. Without the user's consent, authorization for access may only be granted by the General Secretary and only to be granted if there is alleged misconduct by an employee, e.g., in the

case of suspicion of a violation of guidelines, illegal activities, or in emergencies. However, these reasons are not present in the current case. There was no justification for the evaluation of the data from the service mobile phone of the first complainant, and certainly not for private content to be forensically evaluated with the involvement of a service provider in the EU abroad. Other regulations similar to the GDPR or containing similar provisions for the protection of personal data are not known to the complainants.

The first complainant is stationed in W*** and thus has been spatially separated from his wife, who resides in Vienna (formerly fiancée). The first complainant and the second complainant have therefore regularly sent each other emails and chat messages, from which data regarding sexual orientation can also be inferred. Furthermore, various vaccination certificates and test results of the first complainant were stored on the mobile phone evaluated by the respondents.

As attachments are included:

- a screenshot from the mobile phone of the first complainant (Attachment ./J),
- the Financial/Administrative Instruction 12 (Attachment ./I),
- the Financial/Administrative Instruction 13 (Attachment ./H), and
- information on the objectives of information security (Attachment ./G).

8. In the statement dated October 5, 2023, the BMEIA transmitted a submission on behalf of the Austrian Permanent Representation to the OSCE in response to the request for official assistance dated August 29, 2023, which included the applicable data protection service instruction of the first respondent ("OSCE Personal Data Protection Administrative Instruction No. 2/2022") and the Financial/Administrative Instruction 12 "OSCE Policy on Acceptable Use of OSCE Computing Resources" of the first respondent as attachments.

B. Subject of the Complaint

1. Based on the submissions of the first complainant, the subject of the complaint is the question of whether the respondents violated the complainants' right to confidentiality by conducting an evaluation of the first complainant's service mobile phone, on which (sensitive) personal data of the complainants were stored.

2. The subject of the complaint is also the question of whether the first respondent violated the complainants' right to information by not providing information on the recipients who received the personal data of the complainants.

3. Furthermore, the subject of the complaint arises from the question of whether the first respondent violated the complainants' right to deletion by not deleting their data.

Framework of the investigation regarding the personal data of the complainants secured on the service mobile phone of the first complainant has been deleted.

However, it must first be examined whether the data protection authority is competent to decide on the matter.

C. Findings of Facts

1. The first complainant is an ambassador dispatched by the government of ****, who has assumed the role of project coordinator for the field office in Central Asia (W***) with the first respondent as of May 1, 2022, in accordance with the contractual conditions of April 30, 2022, for a limited duration of twelve months. Since May 13, 2022, the first complainant has been married to the second complainant.

[Note by the editor: The organizational chart reproduced here as a facsimile (graphic file) from the website of the first respondent cannot be easily displayed in the RIS and has therefore been removed. There is an overview of special missions, offices, and coordinators of the OSCE in Eastern and Southeastern Europe, the South Caucasus, and Central Asia.]

Assessment of Evidence: These findings are based on the initiating submission of April 18, 2023, and are additionally supported by the official investigations conducted on August 25, 2023, and October 23, 2023, under the URL < https://www.osce.org/files/f/documents/1/7/**4*1_2.pdf >.

2. The first respondent is an international organization with its headquarters in Austria at the postal address < Wallnerstraße 6, 1010 Vienna >. The second respondent holds the position of **** at the first respondent. The third respondent serves as the director of the office for **** at the first respondent.

The fourth and fifth respondents are the *** inspector and the inspector of the office for ****, respectively. The second and third respondents, as well as the fourth and fifth respondents, are all in an employment or labor relationship with the first respondent.

Assessment of Evidence: These findings arise from the initiating submission of April 18, 2023, by the represented complainants and their supplementary statement of May 16, 2023. The finding that the second respondent is the **** of the first respondent and that the third respondent is the director of the office for **** is based on official investigations conducted on August 16, 2023, and October 23, 2023, under the URLs < https://www.osce.org/**s > and < https://www.osce.org/node/*3*0*9 >. The finding that the fifth respondent is working as an inspector of the office for **** also results from the official investigations conducted on August 25, 2023, and October 23, 2023, under the URL < https://at.linkedin.com/in/paulk*** >. Furthermore, these findings have been confirmed by the complainants in their final statement of September 25, 2023 (see point 1 of the statement).

3. On April 20, 2022, the Human Resources Department of the First Respondent initiated an internal investigation against the First Complainant based on a complaint from former employee Ms. Karla C*** dated April 18, 2023. This is based on the applicable regulation for the employees of the First Respondent known as Staff Instruction No. 21/Rev.1 and Annex 2, Paragraph 2.9. The Second Respondent decided to initiate more comprehensive investigations against the First Complainant and communicated this to him in a notice dated May 11, 2022, by Norman R***. In July 2022, the First Complainant was interviewed by the Fourth and Fifth Respondents. During the questioning, the First Complainant's work mobile phone - Samsung Smartphone S/N:*U*T*87*; OSCE Asset Tag Number: *4*9***3*2 - was confiscated. This action was ordered by the Third Respondent.

Notice dated May 11, 2022 (formatting not represented 1:1):

[Note from the editor: The letter from the Human Resources Department of the First Respondent reproduced here as a facsimile (graphic file) contains, in addition to the content specified above, the names of the complainant, the employee filing the complaint, and other individuals. It cannot be pseudonymized with reasonable effort and has therefore been removed.]

Assessment of Evidence: These findings are based on the initiating submission dated April 18, 2023, and the attachments transmitted therein. The finding that the First Respondent has established an internal regulation for personnel or employees arises from the submissions of the complainants, which refer to the specific regulations, as well as from the transmitted attachments.

4. As part of the investigation, a forensic examination was conducted, and previously deleted data sets (documents, messages, and photos) were restored. All data were analyzed - despite the division of the mobile phone into private and work areas - starting from August 19, 2022. The First Complainant was informed on September 6, 2022, that further proceedings had been initiated against him for violating the Code of Conduct and the Financial and Administrative Instruction 12 "Policy on Use of OSCE Computing Resources." The forensic report from November 2022 revealed that the First Complainant's work mobile phone contained, among other things, files that included nudity or pornographic content. Additionally, Covid-19 vaccination and testing certificates of the First Complainant were stored on the mobile phone, as well as his correspondences, from which the sexual orientation of both complainants was derived.

Notice dated November 7, 2022, to the First Complainant from the Fourth Respondent for the First Respondent (formatting not represented 1:1):

[Note from the editor: The letter from the First Respondent reproduced here as a facsimile (graphic file) contains the name of the complainant, his position, the data analyses conducted, as well as a draft of the investigation report with the number of files found on the work mobile phone in accordance with the code of conduct.]

content of the document as follows:

Initial Respondent with questionable content (pornographic images and nude pictures). It cannot be pseudonymized with reasonable effort and has therefore been removed.

Assessment of Evidence: These findings are based on the initiating submission dated April 18, 2023 (see Point 3.10 and Point 3.11), the attached document labeled Annex ./C., and the supplementary statement dated September 25, 2023 (see Question 3 of the statement).

5. The complainants submitted a request for information regarding the recipients of the files evaluated on the service mobile phone and a request for deletion to the initial respondent by letter dated November 18, 2022. The letter is illustrated as follows (formatting not represented 1:1):

Pages 3 and 4 of the letter dated November 18, 2022:

[Note by the editor: The letter from the representatives of the complainants, partially reproduced here as a facsimile (graphic file) from the original decision, has been converted back into a text document for reproduction in the RIS using OCR.]

“You are furthermore obliged to name all persons who have had access to the contents of our client’s mobile phone or your investigation results, including external service providers. You must require them to delete all existing content and maintain confidentiality.

For the above-mentioned reasons, we request you to fulfill the following demands:

- delete all private content of our client that the OSCE has access to and confirm this deletion in writing;
- keep all private content (communication, images, etc.) of our client confidential;
- declare that the results of the investigations concerning our client’s private content will not be used against him and his current and future position in the OSCE;
- name all persons who have had access to all or parts of the content of our client’s mobile phone (including external service providers) and provide their confidentiality agreements;
- declare that all investigations against our client in connection with his private content will be discontinued.

The above-mentioned measures must be carried out immediately, but no later than November 22, 2022.”

****Assessment of Evidence:**** These findings arise from the initiating submission dated April 18, 2023.

6. The third respondent has responded on behalf of the initial respondent and informed the complainants by letter dated November 23, 2022, that the requests will not be met. The response letter dated November 23, 2022, is illustrated as follows (formatting not represented 1:1):

[Note by the editor: The letter (email) from the third respondent to the initial complainant, reproduced here as a facsimile (graphic file), cannot be pseudonymized with reasonable effort and has therefore been removed. It contains, among other things, the following passages: “We note that the investigation into the use of a phone issued by the OSCE (asset) and social media is part of an internal administrative procedure governed by the OSCE’s Joint Regulatory and Administrative System, which has been approved by the participating states and developed to comply with the relevant international standards and administrative laws. On this basis, internal administrative procedures fall under the privileges and immunities granted by the government of the host country.”]

****Assessment of Evidence:**** These findings are based on the initiating submission dated April 18, 2023, and the attached document (email from the third respondent dated November 23, 2022, to the initial complainant).

7. The initial respondent has internal data protection regulations.

****Assessment of Evidence:**** These findings are based on the attachment “OSCE Personal Data Protection Administrative Instruction No. 2/2022” submitted by the BMEIA on behalf of the Austrian Permanent Representation to the OSCE on October 5, 2023, in the context of the request for mutual legal assistance dated August 29, 2023.

****D. From a legal perspective, it follows that:****

****D.1. General****

According to Art. 77 para. 1 GDPR or § 24 para. 1 DSG, every data subject has the right to lodge a complaint with the data protection authority if they believe that the processing of their personal data violates the GDPR or § 1 or Article 2 of the first main part of the DSG.

According to Art. 55 para. 1 GDPR, each supervisory authority is responsible for fulfilling the tasks and exercising the powers assigned to it by the GDPR within the territory of its own Member State.

The data protection authority is thus the supervisory authority responsible for the territory of the Republic of Austria (see § 18 para. 1 DSG).

****Regarding Point 1:****

****D.2. Distribution of Data Protection Roles****

The determination of the distribution of data protection roles is crucial for the complaint procedure under § 24 DSG or Art. 77 para. 1 GDPR, as it determines who is responsible for compliance with the respective data protection provisions, how the data subject can exercise their rights, and ultimately against whom (i.e., which controller) the data protection complaint must be directed (respondent). According to Art. 4 no. 7 GDPR, the controller is the natural or legal person, authority, institution, or other body that alone or jointly with others determines the purposes and means of processing personal data. The essential...

****Criterion: The Decision-Making Component.**** The role of the controller thus primarily arises from the fact that a specific entity has decided to process personal data for its own purposes. The "purpose" describes an expected outcome, while the "means" determine how the expected outcome is to be achieved (cf. the EDSA Guidelines of September 2, 2020, 07/2020 on the concept of the controller and processor, para. 15 et seq.).

Although the DSG does not contain a legal definition of the term "controller," it is generally appropriate to refer to the definition in Art. 4 No. 7 of the GDPR – thus to the decision-making authority regarding purpose and means – by analogy, even outside the material scope of the GDPR (cf. for example, the ruling of the BVwG of September 30, 2020, GZ: W274 2225135-1). The former Art. 29 Data Protection Working Party also stated that processing by a natural person working for a company and using the data within the company's activities is attributed to the company as the responsible entity (cf. Art. 29 Data Protection Working Party, Opinion 1/2010 on the terms "controller" and "processor," WP 169, 00264/10/DE p. 21; see also the EDSA Guidelines 07/2020 of September 2, 2020).

****D.2.1. On the Data Protection Role of the Second and Third Respondents as well as the Fourth and Fifth Respondents****

As stated by the Data Protection Authority in point 3 of the findings, the Second and Third Respondents as well as the Fourth and Fifth Respondents are all in an employment or labor law relationship with the First Respondent.

An exceeding of their competencies as **** (Second Respondent), as Director of the Office for **** (Third Respondent), as *** Inspector (Fourth Respondent), or as Inspector of the Office for **** (Fifth Respondent) cannot be derived from the submissions of the complainants. Since the First Respondent takes such complaints or allegations "very seriously" (cf. the submission of the complainants dated April 18, 2023) and corresponding investigations are also provided for in the internal regulations (Staff Instruction No. 21/Rev.1 or its Annex 2, Paragraph 2.9, or Codes of Conduct as well as the Financial and Administrative Instruction 12 "Policy on Use of OSCE Computing Resources"), the respondents have been tasked with conducting inquiries.

Since the individual actions performed by the employees were carried out in the course of their professional activities for the First Respondent and are therefore also attributable to it, no exceeding of their competencies could be established, nor has it been claimed by the complainants.

It is therefore to be assumed that there is no data protection responsibility of the Second and Third Respondents as well as the Fourth and Fifth Respondents, which is why the...

complaint regarding all raised complaint items should be dismissed, as they do not pertain to responsible parties within the meaning of Art. 4 No. 7 GDPR.

To point 2:

D.3. Competence of the Data Protection Authority concerning the first respondent

D.3.1. Regarding the immunity of international organizations

The first respondent, an international organization within the meaning of Art. 4 No. 26 GDPR, has its seat in Vienna. This undoubtedly establishes a fixed and permanent establishment within the territory of Austria. The definition of "responsible party" in Art. 4 No. 7 GDPR does not exclude international organizations. The criterion of having an establishment within the European Union for the territorial scope of the GDPR is also fulfilled in this case (cf. Art. 3 GDPR; see in detail Schmidl, The GDPR and International Organizations, in Jahnel [ed.] Yearbook Data Protection Law 21 [2022], pp. 20 to 22). Within the seat - and also in the present case, as stated in point 2 of the findings - automated data processing took place in accordance with Art. 4 No. 2 GDPR (evaluation of the data from the service

mobile phone of the first complainant by the first respondent). Thus, the material scope of Art. 2 para. 1 GDPR is also opened; an exception under Art. 2 para. 2 to 4 is not apparent.

Furthermore, the agreement between the Republic of Austria and the OSCE regarding the seat of the Organization for Security and Co-operation in Europe (Federal Law Gazette III No. 84/2018) applies, which regulates the legal status and immunities of the OSCE.

The Data Protection Authority does not overlook that international organizations – according to established case law of European supreme courts – do not enjoy complete immunity from actions of the authorities of the host state.

However, a fundamental jurisdiction of the courts and authorities of the host state for actions within the seat area only comes into question if this is provided for by the respective seat agreement or is not explicitly denied.

This leads to the interim conclusion that international organizations cannot completely evade the legal requirements of the host state. Generally, most seat agreements stipulate that the laws of the host state apply within the seat area. Only if the respective international organization issues its own regulations for the seat area – specifically for the protection of personal data – would the GDPR not apply (cf. Schmidl, loc. cit. pp. 27 ff).

The Constitutional Court states in its ruling of September 29, 2022, regarding SV 1/2021, that according to the case law of the European Court of Human Rights, the widespread practice of granting contractual immunity to international organizations serves the legitimate aim of ensuring that Ensuring the proper functioning of organizations free from unilateral interference by individual states. The significance of this practice should be viewed in light of the expansion and strengthening of international cooperation in all areas of modern societies (ECtHR February 18, 1999 [GC], Case Waite and Kennedy, Appl. 26.083/94 [Z 63]; February 18, 1999 [GC], Case Beer and Regan, Appl. 28.934/95 [Z 53]).

Whether the restriction of access to a court resulting from the exemption of an international organization from state jurisdiction is proportionate in the sense of Article 6(1) of the ECHR essentially depends, according to the European Court of Human Rights, on whether there is an adequate alternative legal remedy (fundamentally ECtHR, Case Waite and Kennedy, Z 68; Case Beer and Regan, Z 58; see also ECtHR January 6, 2015, Case Klausecker, Appl. 415/07, [Z 69 ff.]). It is not necessary for the alternative legal protection to correspond in every respect to a state court system; what is required is comparable, i.e., equivalent, not identical legal protection (see ECtHR September 9, 2008, Case Boivin, Appl. 73.250/01 [Z 2]). Slightly lower guarantees do not constitute a violation of Article 6(1) ECHR; however, a violation of Article 6(1) ECHR occurs when the alternative legal protection system of an international organization is manifestly inadequate (see ECtHR May 12, 2009, Case Gasparini, Appl. 10.750/03; June 16, 2009, Case Rambus, Appl. 40.382/04).

For international organizations, it is generally assumed that an adequate alternative legal remedy may exist in the possibility of invoking court-like internal organizational facilities (see, for example, regarding the procedure before the NATO Complaint Committee ECtHR May 11, 2000, Case A.L., Appl. 41.387/98; regarding the procedure before the Appeals Board of the European Space Agency ECtHR, Case Waite and Kennedy, Z 69; Case Beer and Regan, Z 59). As the European Court of Human Rights has established, the possibility of appealing to the Administrative Court of the International Labour Organization or the possibility of arbitration can also represent an adequate alternative dispute resolution mechanism (see ECtHR, Case Klausecker, Z 70 ff).

It is therefore necessary to examine the specific design of the headquarters agreement concluded between the Republic of Austria and the first respondent more closely: The headquarters agreement with the OSCE provides in Article V Section 5 lit. b that, in principle, the laws of Austria apply in the headquarters area, whereby the GDPR can be considered an integral part of the legal order of Austria as a directly applicable Union legal act. Furthermore, lit. c provides that, unless otherwise stipulated in the headquarters agreement, the actions and legal transactions carried out within the headquarters of the OSCE are subject to the jurisdiction of the courts and other competent authorities of the Republic of Austria in accordance with the applicable legal provisions.

According to Art. V Section 6 lit. a of the Headquarters Agreement, the OSCE is authorized to issue regulations applicable to its headquarters that create all necessary conditions for the full exercise of its roles and mandates in every respect. Laws or regulations of the Republic of Austria that are incompatible with any of the provisions issued by the OSCE under this section shall not be applicable to the OSCE headquarters to the extent of such incompatibility.

D.3.2. Regarding the Applicability of the GDPR in the Present Case

Applied to the present proceedings, this means that it must first be examined whether the first respondent has issued its own internal regulations.

It is acknowledged that the complainants, in their statement of September 11, 2023, denied the existence of their own regulations within the first respondent for the protection of personal data. However, the data protection authority was presented, as part of the request for administrative assistance dated August 29, 2023, with the data protection service instruction of the first respondent titled "OSCE Personal Data Protection Administrative Instruction No. 2/2022" and the Financial/Administrative Instruction 12 "OSCE Policy on Acceptable Use of OSCE Computing Resources" in the statement of October 5, 2023, from the BMEIA on behalf of the Austrian Permanent Representation to the OSCE.

The official review of the submitted documents has revealed that the affected person is granted a right to complain due to data protection violations within the first respondent - at the competent data protection office - and that the possibility of legal remedy protection is also provided.

Since the first respondent has relevant internal regulations, the possibility of a complaint to the data protection authority must already be denied at this stage, as the GDPR and § 1 DSG do not materially apply, and the jurisdiction of the data protection authority is derived from the GDPR and the DSG (see Art. V Section 6 lit. a of the Headquarters Agreement).

Furthermore, it is noted that the complainants stated in their initiating complaint of April 18, 2023, under point 2.5, that "according to the wording of the agreement, there is only an exemption from jurisdiction; however, there is no exemption from administrative procedures, such as that complaint procedure before the data protection authority, according to the clear wording of the agreement." However, this legal opinion (of the complainants) is contradicted by the fact that the explanations to the Headquarters Agreement indicate that this also includes immunity from the activities of administrative authorities (see 12 dB XXVI. GP S 2).

The same applies - as indicated in Article XV Section 28 lit. a of the Headquarters Agreement - to the second and third respondents as well as to the fourth and fifth respondents, who are indisputably - and also as stated by the complainants - employees of the first respondent.

The data protection authority does not overlook that the internal regulations of the OSCE regarding the protection of personal data are not comparable in scope and particularly in terms of legal protection possibilities to the GDPR.

Whether these regulations are unconstitutional for this reason cannot be examined by the data protection authority, as this is exclusively the matter of the Constitutional Court according to Art. 140a B-VG (see again the decision of September 29, 2022, SV 1/2021).

D.3.3. Summary

In summary, it can be stated that the GDPR, both spatially (Art. 3) and materially (Art. 2), fundamentally applies to the present case; however, the first respondent enjoys immunity from actions of the data protection authority due to the Headquarters Agreement and the fact that it has issued its own regulations for the protection of personal data. There are no indications that the Headquarters Agreement would be manifestly contrary to EU law and thus should not apply.

By virtue of this international legal regulation, the first respondent named by the complainants cannot be held accountable by the data protection authority (see again essentially Schmidl aaO S 19 ff), unless the first respondent were to waive its granted immunity. Such a waiver is not evident from the previous course of proceedings. Furthermore, it is not evident in this case that the employees of the first respondent acted outside their area of responsibility.

Consequently, the complaint regarding the first respondent was to be dismissed.

For the sake of completeness, it is finally noted that the first complainant may be affected in his

constitutionally guaranteed rights by the first respondent's own internal data protection regulations. However, the data protection authority is not competent to examine such a matter.